

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

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MAZIE MEREDITH,

Plaintiff,

-against-

THE CITY OF NEW YORK, SGT. STANLEY LOPEZ,  
Shield No. 4868, Individually and in his Official Capacity,  
P.O. MELVIN THOMAS, Shield No. 16356, Individually  
and in his Official Capacity, P.O. RAFAEL BELARDO,  
Shield No. 23912, Individually and in his Official  
Capacity, P.O. MICHELE HERBST, Shield No. 16694,  
Individually and in her Official Capacity, P.O. DEENA  
FELIX, Shield No. 4953, Individually and in her Official  
Capacity, and P.O.'s "JOHN DOE" #1-10, Individually  
and in their Official Capacity (the name John Doe being  
fictitious, as the true names are presently unknown),

Defendants.

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**AMENDED COMPLAINT**

***09 CV 1220***

**JURY TRIAL DEMANDED**

**ECF CASE**

Plaintiff MAZIE MEREDITH, by her attorneys, COHEN & FITCH LLP,  
complaining of the defendants, respectfully alleges as follows:

**PRELIMINARY STATEMENT**

1. Plaintiff brings this action for compensatory damages, punitive damages  
and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his  
civil rights, as said rights are secured by said statutes and the Constitutions of the State of  
New York and the United States.

### **JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

### **VENUE**

4. Venue is properly laid in the Eastern District of New York under U.S.C. §1391(b), in that this is the District in which the claim arose.

### **JURY DEMAND**

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

### **PARTIES**

6. Plaintiff MAZIE MEREDITH is an African-American female and at all relevant times a resident of the City and State of New York.

7. Defendant THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

9. That at all times hereinafter mentioned, the individually named defendants, SGT. STANLEY LOPEZ, P.O. MELVIN THOMAS, P.O. RAFAEL BELARDO, P.O. MICHELE HERBST, P.O. DEENA FELIX, and P.O.s "JOHN DOE" #1-#10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

### **FACTS**

13. On or about September 25, 2008, at approximately 1:25 p.m., plaintiff MAZIE MEREDITH was lawfully present in the vicinity of Wilson Avenue and Schaffer Street, in the County of Kings, State of New York.

14. At the aforesaid time and place, plaintiff had just purchased her prescription medication at a pharmacy in the vicinity of that location.

15. Immediately thereafter, defendant officers, aggressively approached plaintiff, commanded her to get up against the car and immediately handcuffed her arms tightly behind her back.

16. Plaintiff repeatedly requested defendants inform her of the reason she was being placed under arrest, to which defendants did not respond.

17. Defendants then drove plaintiff to the 83<sup>rd</sup> precinct where she was still handcuffed as she sat on a bench.

18. Plaintiff informed defendant police officers that she suffered from grand mal epilepsy, a condition that causes her to have chronic seizures and that this condition would be exacerbated if she were not allowed to take her medication.

19. Despite plaintiff's repeated requests, defendants refused to allow plaintiff to take her medication.

20. While on the bench waiting to be processed at the 83<sup>rd</sup> precinct, plaintiff suffered from her first massive seizure while she was in custody and temporarily blacked out.

21. When plaintiff regained consciousness she was told that she had a seizure and she overheard several police officers saying, "SHE FAKED IT."

22. Thereafter, plaintiff was taken into a holding cell by one of the female police officers who directed her to remove all of her clothes.

23. Plaintiff was asked if she had any contraband on her person to which she responded that she did not.

24. Plaintiff was then subjected to a full body cavity search, specifically plaintiff was asked to spread her legs while one of the defendant police officers began to penetrate her vagina and anus with their fingers without surgical gloves.

25. Plaintiff pleaded with the defendant officer to stop and insisted that there was no contraband in her body or in her possession.

26. Nonetheless the defendant officers, unsatisfied by the initial search, continued to perform an extremely intrusive search of her genitalia causing plaintiff to suffer extreme discomfort.

27. The aforementioned searches did not result in the recovery of any contraband from the plaintiff.

28. Plaintiff was then transported to Woodhull Hospital where she was seen by a physician.

29. At the hospital plaintiff was informed by the treating physician that the defendant officers had instructed him to conduct yet another cavity inspection, and he further explained that he would have to do so unless she refused medical attention.

30. Fearing further intrusion of her body, plaintiff refused medical treatment and was taken back to the precinct.

31. At the precinct plaintiff remained handcuffed to a bench for several hours.

32. While plaintiff remained handcuffed to the bench, plaintiff repeatedly requested that she be allowed to use the bathroom.

33. The defendant officers denied plaintiff's request to go the bathroom and plaintiff was forced to urinate in a cup provided by other male inmates.

34. Thereafter plaintiff was taken to Central Booking, where she asked defendant officers that she be allowed to take her medication and again was refused.

35. Plaintiff suffered from yet another massive seizure and was transported to Long Island College Hospital, where she was finally given her medication.

36. At no time did defendants recover any contraband on plaintiff MAZIE MEREDITH despite the intrusive searches that were performed.

37. Notwithstanding the lack of any drug-related evidence, defendants arrested plaintiff MAZIE MEREDITH and charged her with Criminal Sale of a Controlled Substance in the third Degree and other related charges.

38. Plaintiff MAZIE MEREDITH had not purchased, possessed, or sold any narcotics at any time on September 25, 2008.

39. In connection with this arrest, defendants filled out false and misleading police reports and forwarded these reports to prosecutors in the District Attorney's Office.

40. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

41. As a result of her unlawful arrest, plaintiff MAZIE MEREDITH spent approximately forty eight (48) hours in jail, was deprived medical treatment, and suffered from several seizures while in police custody.

42. Several weeks after her arrest, plaintiff encountered some of the defendant police officers in her neighborhood, who threatened to take her children away and spoke to her using derogatory language.

43. Initially, plaintiff MAZIE MEREDITH was charged with felony charges and during the course of her prosecution all of her felony charges were dismissed.

44. As a result of her unlawful arrest, plaintiff MAZIE MEREDITH had to make numerous court appearances until the felony charges were dismissed and her case was ultimately terminated in her favor.

45. As a result of the foregoing, plaintiff MAZIE MEREDITH sustained, *inter alia*, bodily injuries, mental anguish, shock, fright, apprehension, embarrassment, and humiliation, and deprivation of her constitutional rights.

**FIRST CLAIM FOR RELIEF**  
**DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "45" with the same force and effect as if fully set forth herein.

47. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

48. All of the aforementioned acts deprived plaintiff MAZIE MEREDITH of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

49. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

50. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages,

practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

51. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF**  
**FALSE ARREST UNDER 42 U.S.C. § 1983**

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “51” with the same force and effect as if fully set forth herein.

53. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

54. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF**  
**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “54” with the same force and effect as if fully set forth herein.

56. Defendants misrepresented and falsified evidence before the District Attorney.



57. Defendants did not make a complete and full statement of facts to the District Attorney.

58. Defendants withheld exculpatory evidence from the District Attorney.

59. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff MAZIE MEREDITH.

60. Defendants lacked probable cause to initiate criminal proceedings against plaintiff MAZIE MEREDITH.

61. Defendants acted with malice in initiating criminal proceedings against plaintiff MAZIE MEREDITH.

62. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff MAZIE MEREDITH.

63. Defendants lacked probable cause to continue criminal proceedings against plaintiff MAZIE MEREDITH.

64. Defendants acted with malice in continuing criminal proceedings against plaintiff MAZIE MEREDITH.

65. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

66. Notwithstanding the perjurious and fraudulent conduct of defendants, the felony charges were dismissed and ultimately criminal proceedings were terminated in plaintiff MAZIE MEREDITH favor.

67. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FOURTH CLAIM FOR RELIEF**  
**MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983**

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "67" with the same force and effect as if fully set forth herein.

69. Defendants issued legal process to place plaintiff MAZIE MEREDITH under arrest.

70. Defendants arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

71. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

72. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for her safety and was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FIFTH CLAIM FOR RELIEF**  
**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL**  
**UNDER 42 U.S.C. § 1983**

73. Plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs "1" through "72" as if the same were more fully set forth at length herein.

74. Defendants created false evidence against plaintiff MAZIE MEREDITH.

75. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office.

76. Defendants misled the prosecutors by creating false evidence against plaintiff MAZIE MEREDITH and thereafter providing false testimony throughout the criminal proceedings.

77. In creating false evidence against plaintiff MAZIE MEREDITH, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

78. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and she was put in fear for her safety and she was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**SIXTH CLAIM FOR RELIEF**  
**EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "78" with the same force and effect as if fully set forth herein.

80. The level of force employed by defendants was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

81. As a result of the foregoing, plaintiff MAZIE MEREDITH sustained, *inter alia*, bodily injuries, mental anguish, shock, fright, apprehension, embarrassment, and humiliation, and deprivation of his constitutional rights.

**SEVENTH CLAIM FOR RELIEF**  
**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “81” with the same force and effect as if fully set forth herein.

83. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

84. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, a) arresting individuals regardless of probable cause, and b) utilizing excessive force in executing said arrests, and c) falsifying evidence to cover up police misconduct.

85. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

86. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

88. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff MAZIE MEREDITH was subjected to unlawful and excessive force resulting in permanent and disabling injuries.

89. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

90. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff MAZIE MEREDITH's constitutional rights.

91. The acts complained of deprived plaintiff of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from malicious abuse of process;
- D. Not to have excessive force imposed upon them;
- E. To be free from unlawful search;
- F. Not to have summary punishment imposed upon them; and
- G. To receive equal protection under the law.

**EIGHTH CLAIM FOR RELIEF  
UNLAWFUL AND UNREASONABLE  
SEARCH UNDER 42 U.S.C. § 1983**

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. As a result of the forgoing plaintiff MAZIE MEREDITH was subjected to unreasonable and intrusive cavity searches that shocks the conscience in violation of her due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States

94. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally, improperly, and unreasonably searched without consent, a valid warrant, probable cause, privilege or consent, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**NINTH CLAIM FOR RELIEF  
DELIBERATE INDIFFERENCE TO PLAINTIFF'S  
MEDICAL NEEDS UNDER 42 U.S.C. § 1983**

95. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "94" with the same force and effect as if fully set forth herein.

96. Defendants knew that plaintiff MAZIE MEREDITH had sustained severe and serious injuries which required treatment for her seizures.

97. Notwithstanding this knowledge, defendants refused to take plaintiff MAZIE MEREDITH to the hospital in a timely fashion and refused to ensure that plaintiff received the proper treatment.

98. In so doing, defendants exhibited a deliberate indifference to the health, safety, welfare and medical needs of plaintiff MAZIE MEREDITH, in violation of plaintiff's constitutional rights as secured by the Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States.

99. As a result of defendants' deliberate indifference to the medical needs of plaintiff MAZIE MEREDITH, plaintiff suffered severe and permanent injuries.

**PENDANT STATE CLAIMS**

100. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "99" with the same force and effect as if fully set forth herein.

101. On or about December 18, 2008, and within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

102. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

103. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said Hearing took place on March 16, 2008.

104. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

105. Plaintiff has complied with all conditions precedent to maintaining the instant action.

106. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
ASSAULT**

107. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "106" with the same force and effect as if fully set forth herein.

108. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

109. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
BATTERY**

110. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "109" with the same force and effect as if fully set forth herein.

111. Defendant police officers touched plaintiff MAZIE MEREDITH in a harmful and offensive manner.

112. Defendant police officers did so without privilege or consent from plaintiff.

113. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.



**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**FALSE ARREST**

114. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "113" with the same force and effect as if fully set forth herein.

115. Defendant police officers arrested plaintiff MAZIE MEREDITH in the absence of probable cause and without a warrant.

116. As a result of the aforesaid conduct by defendants, plaintiff MAZIE MEREDITH was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**FALSE IMPRISONMENT**

117. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "116" with the same force and effect as if fully set forth herein.

118. As a result of the foregoing, plaintiff MAZIE MEREDITH was falsely imprisoned, his liberty was restricted for an extended period of time, was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints.

119. Plaintiff was conscious of said confinement and did not consent to same.

120. The confinement of plaintiff was without probable cause and was not otherwise privileged.

121. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

122. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "121" with the same force and effect as if fully set forth herein.

123. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

124. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

125. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

126. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

127. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

128. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "127" with the same force and effect as if fully set forth herein.

129. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of said its Police Department, including the defendants individually named above.

130. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

131. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

132. By reason of the aforesaid conduct by defendants, plaintiff MAZIE MEREDITH requests the following relief:

A. Compensatory damages in the amount of one million dollars (\$1,000,000);

B. Punitive damages in the amount of one million dollars (\$1,000,000.00);

C. An award of reasonable attorney's fees pursuant to 42 U.S.C. § 1988, as well as costs and disbursements; and

D. Any further relief as the Court may find just and proper.

133. As a result of the foregoing, plaintiff are entitled to compensatory damages in the sum of one million dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of one million dollars (\$1,000,000.00).

**WHEREFORE**, plaintiff MAZIE MEREDITH demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages, one million dollars (\$1,000,000.00) in punitive damages, plus attorney's fees, costs, and disbursements of this action.

Dated: New York, New York  
July 31, 2009

BY: \_\_\_\_\_/S\_\_\_\_\_  
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